

“provisions of this Act” the words “(other than those of subsection (1A) of section three).”

2.—(1) This Act may be cited as the Firearms Act, 1934. Short title
and extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 17.

An Act to amend the County Courts Acts, 1888 to 1924, and certain other enactments relating to county courts. [17th May 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Courts, Judges and Registrars.

1. The following section shall be substituted for section three of the principal Act and section five of that Act shall cease to have effect :— Amendment
as to con-
stitution of
courts.

“3.—(1) For the purposes of this Act England (excluding the City of London) shall be divided into districts, and a court shall be held under this Act for each of the said districts at one or more places therein, and throughout the whole of each district the court so held for the district shall have such jurisdiction and powers as are conferred by this Act and any other enactment for the time being in force.

(2) Every court so held shall be called a county court and shall be a court of record, and there shall be at least one judge for every district.

(3) Subject to any alterations made in pursuance of this Act, county courts shall continue to be held for the districts and at the places and by the names appointed at the commencement of this Act under the enactments repealed by this Act.”

Provisions
as to
deputy
judges.

2.—(1) Where the hearing of any proceedings duly commenced before a deputy judge is adjourned, or judgment is reserved therein, the deputy judge shall, notwithstanding that before the hearing is resumed or judgment is delivered the period of his appointment expires or a successor is appointed to the judge for whom he was acting as deputy, have power to resume the hearing and determine the proceedings or, as the case may be, to deliver as the judgment of the court the judgment which he has reserved.

(2) Subject to the provisions of this Act relating to the Chancellor of the Duchy of Lancaster, the Lord Chancellor may, if he thinks fit, remove a deputy judge for inability or misbehaviour.

(3) It is hereby declared—

- (a) that a deputy judge may be appointed to act for a judge in all or any of the districts for which the judge was appointed, or at all or any of the places at which the court for any such district is held;
- (b) that a deputy judge appointed under section nineteen or twenty-one of the principal Act is required to have the same qualifications as a deputy judge appointed under section eighteen of that Act;
- (c) that in section twenty of the principal Act (which prohibits a deputy judge from practising in any court within the district of a court in which he acts) the expression “any court” means any county court or other court.

(4) The provisions of section twenty-one of the principal Act (which deals with the appointment of deputy judges on the death or resignation of a judge) shall apply in the case of the vacation of his office by a judge from any cause whatsoever in the same manner as they apply in the case of the death or resignation of a judge, and the remuneration payable to a deputy judge under that section shall, instead of being a rateable proportion of the judge's salary and allowances, be such remuneration as the Lord Chancellor may, with the approval of the Treasury, in any case determine.

(5) In this section the expression "deputy judge," unless the context otherwise requires, means a person appointed to act as the deputy of a judge under any of the provisions of the principal Act.

3.—(1) When the judge of a district to which this section applies ceases to be the judge thereof, whether by reason of his vacating office or by reason of any alteration in the distribution of the districts among the judges made by the Lord Chancellor under section thirteen of the principal Act, the appointment of his successor shall, unless it is made under the said section thirteen, be made by the Chancellor of the Duchy of Lancaster (in this section referred to as "the Duchy"), and not by the Lord Chancellor.

Provisions
as to
Duchy of
Lancaster.

(2) Before appointing any person to be a judge, the Chancellor of the Duchy shall take steps to satisfy himself that the health of that person is satisfactory.

(3) The power of removing a judge under section fifteen of the principal Act shall, in the case of a judge of a district to which this section applies, be exerciseable by the Chancellor of the Duchy and not by the Lord Chancellor.

(4) The judge of a district to which this section applies shall not, except in the case of his illness or unavoidable absence, appoint a deputy under section eighteen of the principal Act except with the approval of the Chancellor of the Duchy, but shall not be required to obtain the approval of the Lord Chancellor before making such an appointment.

(5) The power of appointing under section twenty-one of the principal Act a deputy of a judge of a district to which this section applies shall be exerciseable by the Chancellor of the Duchy instead of by the Lord Chancellor.

(6) The power of removing a deputy judge conferred by this Act and the power of ordering under section twenty-one of the principal Act that a deputy judge shall cease to act as such shall, in the case of the deputy of a judge of a district to which this section applies (other than a deputy appointed by the Lord Chancellor) be exerciseable by the Chancellor of the Duchy and not by the Lord Chancellor.

(7) The Lord Chancellor shall not, except with the consent of the Chancellor of the Duchy—

- (a) make any order under section four of the principal Act with respect to a district to which this section applies; or
- (b) direct under section twelve of the principal Act that there shall be two judges of any such district; or
- (c) make any alteration under section thirteen of the principal Act in the distribution among the judges of the districts to which this section applies.

(8) This section applies to a district wholly or partly within the Duchy, being a district the judge of which is not judge of any other district wholly outside the Duchy, or, in a case where there is more than one judge of the district, being a district no judge of which is judge of any other district wholly outside the Duchy :

Provided that the Lord Chancellor may by order provide that a district adjacent to the Duchy shall be treated for the purpose of this subsection as if it were wholly or partly within the Duchy.

(9) The Lord Chancellor may, with the consent of the Chancellor of the Duchy, revoke any order made under the last foregoing subsection.

(10) The foregoing provisions of this section shall have effect in substitution for the provisions of the principal Act relating to the powers and duties of the Chancellor of the Duchy as respects judges and deputy judges.

(11) The powers conferred upon the Chancellor of the Duchy by section twenty-seven of the principal Act as respects registrars shall be transferred to the Lord Chancellor.

(12) Nothing in this section shall be taken to affect the limit on the number of judges imposed by section eight of the principal Act.

Provision
of court-
houses, &c.
33 & 34 Vict.
c. 15.

4.—(1) Nothing in section one hundred and seventy-nine of the principal Act shall be taken to affect the duty of the Commissioners of Works under section four of the County Court (Buildings) Act, 1870, to build, purchase, hire or otherwise provide a court-house, offices

or buildings in any town or place where a county court is held, if it appears to the said Commissioners, on the representation of the Lord Chancellor made with the concurrence of the Treasury, that there is no town hall, court-house or other public building in that town or place which is suitable for the purpose of holding and carrying on the business of the court.

(2) For the purpose of providing a court-house, offices and buildings for holding and carrying on the business of a county court under the said section four of the County Courts (Buildings) Act, 1870, it shall be lawful for the said Commissioners, with the approval of the Lord Chancellor, to contribute, on such terms as the Treasury may approve, to the expenses incurred by any local or other public authority in erecting or reconstructing a town hall, court-house or other public building.

Amendments as to Jurisdiction.

5.—(1) In section fifty-six of the principal Act (which deals with the ordinary jurisdiction of the court) the expression “actions founded on contract or on tort” shall be substituted for the expression “personal actions.” Amend-
ments as to
ordinary
jurisdiction.

(2) In section fifty-seven of the principal Act (which provides for cases where the claim is reduced by a set off) the expression “admitted set off” shall mean a set off admitted by the plaintiff in the particulars of his claim or demand.

(3) A county court shall have jurisdiction to hear and determine any action for the recovery of any penalty, expenses, contribution or other like demand which is recoverable by virtue of any enactment for the time being in force, if it is not expressly provided by that or any other enactment that the demand shall be recoverable only in some other court and if the amount claimed in the action does not exceed one hundred pounds :

Provided that for the purposes of this subsection the expression “penalty” shall not include a fine to which any person is liable on conviction on indictment or on summary conviction.

6.—(1) Actions for the recovery of land shall be commenced in a county court only under section fifty-nine of the principal Act, and accordingly sections one hundred Actions for
the recovery
of land.

and thirty-eight to one hundred and forty-five of the principal Act (which provide an alternative procedure for the recovery of land in a county court in certain cases) shall cease to have effect, and throughout the principal Act references to actions for the recovery of land shall be substituted for references to actions of ejectment.

(2) References in any enactment (except in the County Courts Acts, 1888 to 1924) to section one hundred and thirty-eight or one hundred and thirty-nine of the principal Act, or to any provision which is repealed by the principal Act and re-enacted in either of those sections, shall be construed as a reference to section fifty-nine of the principal Act.

(3) In the proviso to subsection (1) of section fifty-nine of the principal Act (which provides for actions for the recovery of land commenced in a county court being tried in the High Court on the application of the defendant) the words "transferred to the High Court" shall be substituted for the words "tried in the High Court", in both places where those words occur, and the words from "and thereupon" to the end of the section shall cease to have effect.

(4) Where, in an action for the recovery of land commenced in a county court, no application is made by the defendant to the High Court in accordance with the proviso to the said section fifty-nine, or where such an application is made but no order is made for the transfer of the action, the county court shall have jurisdiction to try the action notwithstanding the provisions of the principal Act relating to actions in which the title to hereditaments comes in question.

15 & 16

Geo. 5. c. 20.

(5) Section one hundred and forty-five of the Law of Property Act, 1925 (which requires a lessee of any premises to give notice to the lessor of any writ for the recovery of the premises) shall have effect as if the expression "writ" included a summons issued from a county court.

(6) The provisions of the First Schedule to this Act shall have effect as respects actions in the county court to enforce a right of re-entry or forfeiture for non-payment of rent, and as respects relief against any such forfeiture.

(7) Nothing in this section, or in the provisions of this Act repealing sections one hundred and thirty-eight to one hundred and forty-five of the principal Act, or in the provisions of this Act repealing certain words in sections fifty-nine and one hundred and twenty of the principal Act and in section seven of the County Courts Act, 1924, shall affect any proceedings commenced in a county court before this section comes into operation. 14 & 15
Geo. 5. c. 17.

7.—(1) The following paragraph shall be substituted for paragraph 1 of section sixty-seven of the principal Act (which gives a county court jurisdiction in certain equity proceedings), that is to say,— Jurisdiction
in equity
proceedings.

“1. For the administration of the estate of a deceased person where the estate does not exceed in amount or value the sum of five hundred pounds.”

(2) Without prejudice to the generality of the provisions of the said section sixty-seven, a county court shall have jurisdiction (including power to receive payment of money or securities into court) under the enactments set out in the first column of the Second Schedule to this Act in the cases respectively mentioned in the second column of that schedule.

(3) If, as respects any proceedings in which a county court would have jurisdiction by virtue of section sixty-seven of the principal Act or subsection (3) of section one hundred and thirteen of the Settled Land Act, 1925, or the Second Schedule to this Act but for the limitation of the jurisdiction of the court provided in those enactments, the parties agree, by a memorandum signed by them or by their respective solicitors or agents, that any county court specified in the memorandum shall have jurisdiction in the proceedings, that court shall, notwithstanding anything in any enactment, have jurisdiction to hear and determine the proceedings accordingly. 15 & 16
Geo. 5. c. 18.

(4) Section seventy of the principal Act shall cease to have effect.

8.—(1) Where there is commenced in the High Court any action or matter to which this section applies, any party thereto may apply to the High Court or a judge thereof for an order that the action or matter be transferred to a county court, and thereupon the court Transfer of
equity pro-
ceedings
from High
Court to
county
court.

or judge may, if it or he thinks fit, order the action or matter to be transferred to any county court which the court or judge may deem the most convenient to the parties.

(2) This section applies to any action or matter commenced after this section comes into operation which is assigned for the time being to the Chancery Division of the High Court and is, by virtue of any enactment for the time being in force, within the jurisdiction of a county court.

(3) Section sixty-five of the principal Act shall not apply to any action to which this section applies.

Procedure
where
proceedings
beyond
jurisdiction
are com-
menced in
county
court.

9. Where any proceedings are commenced in a county court in which a county court has no jurisdiction, the court shall, unless it is given jurisdiction by an agreement made under the provisions of this Act or of section sixty-four of the principal Act, transfer the proceedings to the High Court :

Provided that where, on the application of any defendant, it appears to the court that the plaintiff or one of the plaintiffs knew or ought to have known that the court had no jurisdiction in the proceedings, the court may, if it thinks fit, instead of ordering the proceedings to be transferred as aforesaid, order them to be struck out.

Transfer of
proceedings
from High
Court to
county
court by
agreement.

10. If, where proceedings have been commenced in the High Court, an agreement is made under the provisions of this Act or of section sixty-four of the principal Act that a county court shall have jurisdiction in those proceedings, the High Court or a judge thereof shall, on the application of any party to the proceedings, transfer the proceedings to that county court.

Jurisdiction
as to
counter-
claims.

11.—(1) Where in any action or matter commenced in a county court, any counterclaim or set off and counterclaim of any defendant involves matter beyond the jurisdiction of a county court, any party to the action or matter may, within such time as may be prescribed by rules of the Supreme Court, apply to the High Court or a judge thereof for an order that the whole proceedings, or the proceedings on the counterclaim or set off and counterclaim, be transferred to the High Court.

(2) On any such application the High Court or judge may, as it or he thinks fit, order either—

- (a) that the whole proceedings be transferred to the High Court; or
- (b) that the whole proceedings be heard and determined in the county court; or
- (c) that the proceedings on the counterclaim or set off and counterclaim be transferred to the High Court and that the proceedings on the plaintiff's claim and the defence thereto other than the set off (if any) be heard and determined in the county court:

Provided that, where an order is made under paragraph (c) of this subsection, and judgment on the claim is given for the plaintiff, execution thereon shall, unless the High Court or a judge thereof at any time otherwise orders, be stayed until the proceedings transferred to the High Court have been concluded.

(3) If no application is made under this section within the prescribed time, or if on such an application it is ordered that the whole proceedings be heard and determined in the county court, the county court shall have jurisdiction to hear and determine the whole proceedings, notwithstanding any enactment to the contrary.

(4) Section two hundred and three of the Supreme Court of Judicature (Consolidation) Act, 1925 (which deals with the jurisdiction of inferior courts over counterclaims) shall cease to have effect as respects proceedings before a county court, and section two hundred and two of that Act shall have effect in relation to a county court as if a reference to this section were substituted for a reference to the said section two hundred and three. 15 & 16
Geo. 5. c. 49.

(5) Nothing in this section or in the provisions of this Act repealing the said section two hundred and three shall affect any proceedings commenced in a county court before this section comes into operation.

Admiralty Proceedings.

12.—(1) Section two of the Act of 1868 (which provides for the appointment of county courts for admiralty purposes) shall be amended as follows:— Amendment
of s. 2
of 31 & 32
Vict. c. 71.

- (a) the powers conferred by the section shall be exercised by the Lord Chancellor by order

instead of by His Majesty in Council on the representation of the Lord Chancellor;

- (b) where an order is made under the section for the discontinuance of the admiralty jurisdiction of any county court, whether wholly or within a part of the district assigned to it for admiralty purposes, provision may be made in the order with respect to any admiralty proceedings commenced in that court before the order comes into operation;
- (c) an order made under the section (including an Order in Council made thereunder before the commencement of this Act) may be revoked as well as varied by a subsequent order made thereunder.

(2) In this Act the expression “admiralty proceedings” means proceedings in which the claim would not be within the jurisdiction of a county court but for the provisions of the said section two of the Act of 1868 and the next following section of this Act, and the expression “admiralty cause” in the Act of 1868 shall have the same meaning.

Jurisdiction
in Admir-
alty pro-
ceedings.

13.—(1) An admiralty county court shall, in relation to admiralty matters, have jurisdiction to hear and determine any of the following claims :—

- (a) any claim for damage received by a ship;
- (b) any claim for damage done by a ship;
- (c) any claim in the nature of salvage for services rendered to a ship (including, subject to the provisions of sections five hundred and forty-four and five hundred and forty-five of the Merchant Shipping Act, 1894, services rendered in saving life from a ship);
- (d) any claim in the nature of towage;
- (e) any claim for necessities supplied to a foreign ship, and, unless it is shown to the court that at the time of the institution of the proceedings any owner or part owner of the ship was domiciled in England, any claim for any necessities supplied to a ship elsewhere than in the port to which the ship belongs;

57 & 58 Vict.
c. 60.

(f) subject to the provisions of sections one hundred and sixty-five and one hundred and sixty-seven of the Merchant Shipping Act, 1894, any claim by a seaman of a ship for wages earned by him on board the ship, whether due under a special contract or otherwise, and any claim by the master of a ship for wages earned by him on board the ship and for disbursements made by him on account of the ship;

(g) any claim—

(i) arising out of an agreement relating to the use or hire of a ship; or

(ii) relating to the carriage of goods in a ship; or

(iii) in tort in respect of goods carried in a ship;

and the jurisdiction of the court to hear and determine any claim mentioned in this subsection shall, save as provided by paragraph (e) thereof, be exercisable wherever the owners or part owners of any ship in respect of which the claim is brought may be domiciled.

Provided that, subject to the provisions of this section, no county court shall have jurisdiction to hear and determine any claim mentioned in this subsection for an amount exceeding three hundred pounds, except in the case of a claim in the nature of salvage where the value of the property saved does not exceed one thousand pounds.

(2) If, as respects any proceedings as to any such claim as is herebefore in this section mentioned, the parties agree, by a memorandum signed by them or by their respective solicitors or agents, that any admiralty county court specified in the memorandum shall have jurisdiction in the proceedings, that court shall, notwithstanding anything in the proviso to the last foregoing subsection, have jurisdiction to hear and determine the proceedings accordingly.

(3) The provisions of this section which confer admiralty jurisdiction in respect of claims for damage shall be construed as extending to claims for loss of life or personal injuries.

(4) The jurisdiction conferred by this section may be exercised either in proceedings in rem or in proceedings in personam.

(5) Nothing in this section, or in the Act of 1868 or any order made thereunder, shall be taken to confer on a county court the jurisdiction of a prize court within the meaning of the Naval Prize Acts, 1864 to 1916.

(6) Nothing in this section shall be taken to affect the jurisdiction of any county court to hear and determine any proceedings in which it has jurisdiction by virtue of sections fifty-six, fifty-seven or eighty-one of the principal Act.

(7) In this section, unless the context otherwise requires, the expression "ship" includes any description of vessel whatsoever.

(8) The provisions of sections five hundred and forty-seven, five hundred and forty-eight and five hundred and forty-nine of the Merchant Shipping Act, 1894, shall cease to have effect as respects the summary determination in a county court of disputes as to salvage.

Assessors in
admiralty
proceedings.

14.—(1) Section one hundred and three of the principal Act (which provides for the appointment of assessors) shall apply to admiralty proceedings as it applies to other proceedings in a county court, and accordingly sections ten, eleven, fourteen, fifteen and sixteen of the Act of 1868 and section five of the Act of 1869 shall cease to have effect.

(2) Where, in any proceedings pending in a county court at the date on which this section comes into operation, any assessors have been summoned before that date under the sections aforesaid of the Acts of 1868 and 1869, they shall be deemed to have been summoned under section one hundred and three of the principal Act.

Appeals in
admiralty
proceedings.

15.—(1) If any party to any admiralty proceedings in a county court is dissatisfied with the determination of the judge on a question of fact, the party aggrieved by the judgment or order of the judge may, subject to the provisions of section one hundred and twenty-three of the principal Act (which provides that no appeal shall lie where the parties have agreed not to appeal), appeal therefrom to the High Court :

Provided that, without the leave of the judge, there shall be no appeal under this subsection unless the amount claimed in the proceedings exceeds one hundred pounds.

(2) Sections twenty-six, twenty-seven, twenty-eight, thirty and thirty-one of the Act of 1868 shall cease to have effect, but nothing in the foregoing provisions of this section shall be taken to affect the right of any party to any admiralty proceedings in a county court to appeal to the High Court under section one hundred and twenty of the principal Act and any such party may appeal under that section in like manner, and subject to the like conditions, as a party to an action of contract or tort.

(3) Nothing in the foregoing provisions of this section or in the provisions of this Act repealing the said sections of the Act of 1868 shall affect any proceedings commenced in a county court before this section comes into operation.

(4) Section thirty-two of the Act of 1868 (which provides for the transfer to the High Court of proceedings for the sale of a vessel or property on an appeal to the High Court relating thereto) shall apply to appeals under this section and to appeals in admiralty proceedings under section one hundred and twenty of the principal Act as it applied to appeals under the first-mentioned Act as originally enacted.

16.—(1) In any action commenced in the High Court to which this section applies, any party may at any time apply to the High Court or a judge thereof for an order that the claim and counterclaim (if any) or, if the only matter remaining to be tried is a counterclaim, the counterclaim, shall be transferred to an admiralty county court, and the court or judge may thereupon, if it or he thinks fit, order the claim and counterclaim (if any) or, if the only matter remaining to be tried is a counterclaim, the counterclaim, to be transferred to any admiralty county court which the court or judge may deem the most convenient to the parties.

Transfer of
admiralty
proceedings
from High
Court to
county
court.

(2) This section applies to any action commenced after this section comes into operation where the plaintiff's claim is any such claim as is mentioned in subparagraph (iii), (iv), (v), (vi), (vii), (viii) or (xii) of paragraph (a) of subsection (1) of section twenty-two of the Supreme Court of Judicature (Consolidation) Act, 1925, and the amount claimed or remaining in dispute in respect

thereof does not exceed the amount by which the jurisdiction of an admiralty county court in respect of the claim is limited—

- (a) whether the action could or could not have been commenced in a county court; and
- (b) whether the defendant does or does not set up or intend to rely on a counterclaim; and
- (c) whether the counterclaim (if any), if it had been a claim in an action, would or would not have been within the jurisdiction of a county court.

(3) Where an action is transferred to a county court under this section, any vessel or other property, which has been arrested in the action before the transfer, shall, notwithstanding the transfer, remain in the custody of the Admiralty Marshal who shall, subject to any directions of the High Court, comply with any orders made by the county court with respect to that vessel or property.

(4) Section sixty-five of the principal Act shall cease to apply to any action to which this section applies.

Mode of Trial.

Amendment
as to trial
by jury.

17.—(1) In all admiralty proceedings in a county court the trial shall be without a jury, and in all other proceedings in a county court the trial shall be without a jury unless the court otherwise orders on an application made in that behalf by any party to the proceedings in such manner and within such time before the trial as may be prescribed.

(2) In a case where the court is satisfied on any such application—

- (a) that a charge of fraud against the party making the application is in issue; or
- (b) that a claim in respect of libel, slander, malicious prosecution, false imprisonment, seduction or breach of promise of marriage is in issue;

the court shall order the proceedings to be tried with a jury, unless the court is of opinion that the trial requires any prolonged examination of documents or accounts or any scientific or local investigation which cannot conveniently be made with a jury.

(3) In any other case the court on any such application may, as it thinks fit, either order the proceedings to be tried with a jury or dismiss the application.

(4) Nothing in this section or in the provisions of this Act repealing section nineteen of the Administration of Justice Act, 1925, shall affect any proceedings commenced in a county court before this section comes into operation. 15 & 16
Geo. 5. c. 28.

18.—(1) On the first occasion in any year on which an order is made by a county court for the trial of any proceedings with a jury, the registrar of that court shall obtain copies of the last published registers of electors for all such registration units as are comprised in whole or in part within the district of the court. Summoning
of jurors.

(2) For the purpose of complying with the order aforesaid, and with any other order made by the court during the same year for the trial of proceedings with a jury, the registrar shall cause the prescribed number of persons, being persons who are shown by the registers aforesaid to be residing or occupying property within the district of the court and who are marked in those registers as jurors or special jurors in pursuance of section one of the Juries Act, 1922, to be summoned to attend on the jury at the time and place specified in the summons: 12 & 13
Geo. 5. c. 11.

Provided that no person shall be summoned to attend on a jury in the same county court more than twice in the same year.

(3) A summons issued in pursuance of this section may be served either by post or in such other manner as may be prescribed.

(4) If any person duly summoned to attend on a jury in a county court fails to attend at the time and place mentioned in the summons, he shall forfeit such sum not exceeding five pounds as the court may direct:

Provided that any person summoned as aforesaid to attend on a jury shall be excused from attending on that jury if he satisfies the court in the prescribed manner—

- (a) that he has within the six months next before the service of the summons attended on a jury in some other court; or
- (b) that there is any other good reason why he should be excused from attending on the jury.

(5) For the purpose of this section a notice requiring a jury to be summoned, given to the registrar by a party to any proceedings commenced in a county court before the last foregoing section of this Act comes into operation, shall be treated as if it were an order of the court for the trial of those proceedings with a jury.

Power of
registrar to
try cases by
consent.
9 & 10
Geo. 5. c. 73.

19. Subsection (1) of section five of the County Courts Act, 1919 (which provides that a registrar may, on the application of the parties and by leave of the judge, hear and determine any case in which the sum claimed or the amount involved does not exceed five pounds) shall have effect as if the words "ten pounds" were substituted for the words "five pounds."

Extension
of judge's
power to
refer.

20. Notwithstanding anything in section six of the County Courts Act, 1919, the judge shall have power, whether with or without the consent of the parties, to refer in accordance with the provisions of that section—

- (a) any action or matter which requires any prolonged examination of documents or any scientific or local investigation which cannot, in the opinion of the judge, conveniently be made before him;
- (b) any action or matter where the question in dispute consists wholly or in part of matters of account;
- (c) subject to any right to have particular cases tried with a jury, any question arising in any action or matter.

Financial Provisions.

Rules as
to funds in
court.

21.—(1) The Lord Chancellor, with the concurrence of the Treasury, may make rules (in this Act referred to as "the County Court Funds Rules") regulating the deposit, payment, delivery and transfer in, into and out of a county court of money and securities which belong to suitors, or are otherwise capable of being deposited in or paid or transferred into a county court or are under the custody of a county court, and regulating the evidence of such deposit, payment, delivery or transfer, and the

manner in which money and securities in court are to be dealt with, and in particular—

- (a) regulating the placing of money in court (with such exceptions as may be prescribed) to deposit accounts or investment accounts and prescribing the rate of interest on money placed to such accounts, so however that the rate of interest on money placed to a deposit account shall be equal to the rate of interest for the time being payable on deposits in the Post Office Savings Bank;
- (b) requiring registrars to pay from time to time to the Accountant-General of the Supreme Court (in this Act referred to as “the Accountant-General”) all money in court which is not required by them for meeting current demands, and requiring the Accountant-General to pay to the National Debt Commissioners (in this Act referred to as “the Commissioners”) all money received by him under the rules which is not required by him for meeting current demands;
- (c) requiring the annual publication of lists of accounts which have not been dealt with for such period as may be prescribed (not being less than fifteen years in the case of deposit and investment accounts or five years in the case of other accounts), and requiring the closing of any account included in any such list if the money standing to the credit of the account is not claimed within such period after the publication of the list as may be prescribed;
- (d) making provision as respects the matters specified in the Third Schedule to this Act.

(2) The County Court Funds Rules shall not apply to the Mayor's and City of London Court, but the Lord Chancellor may make separate rules for that court (in this Act referred to as “the Mayor's and City of London Court Funds Rules”) regulating or making provision for any matter which may be regulated, or for which provision may be made, by the County Court Funds Rules, with the substitution of the Chamberlain of the City of London for the Accountant-General and the Commissioners.

(3) Any rules made under this section shall be laid before both Houses of Parliament as soon as may be after they are made and shall cease to have effect if either House, within the next subsequent twenty-eight days on which that House has sat after the date on which the rules are laid before it, resolves that the rules shall be annulled, but without prejudice to anything previously done thereunder or to the making of new rules.

(4) The Accountant-General and the Commissioners shall keep such accounts of their transactions under the County Court Funds Rules as the Treasury may direct, and those accounts shall be examined from time to time by the Comptroller and Auditor General, and copies of the accounts certified by the Comptroller and Auditor General, together with his report thereon, shall be laid by the Lord Chancellor before both Houses of Parliament.

15 & 16
Geo. 5. c. 19.
15 & 16
Geo. 5. c. 84.

(5) The following enactments shall have effect as if references to rules of court or county court rules included references to the County Court Funds Rules or the Mayor's and City of London Court Funds Rules, as the case may be, that is to say, section sixty-three of the Trustee Act, 1925, paragraphs 1 and 3 of the Second Schedule to the Workmen's Compensation Act, 1925, and subsection (1) of section two hundred and five of the Supreme Court of Judicature (Consolidation) Act, 1925.

(6) In this section and the Third Schedule to this Act, the expression "prescribed" means prescribed by the County Court Funds Rules, and the expressions "money in court" and "securities in court" mean money or securities, as the case may be, deposited, paid, delivered or transferred in or into a county court in pursuance of the principal Act or any other Act or in pursuance of county court rules.

63 & 64
Vict. c. 47.

(7) The following enactments shall cease to have effect, that is to say, sections seventy-one and one hundred and seventy-three of the principal Act, the County Courts (Investment) Act, 1900, paragraphs 4, 5, 6 and 7 of the Second Schedule to the Workmen's Compensation Act, 1925, and subsections (3) and (5) of section two hundred and five of the Supreme Court of Judicature (Consolidation) Act, 1925:

Provided that, if this section comes into operation after the end of the month of February in any year, section one hundred and seventy-three of the principal Act shall not cease to have effect until the first day of January next following the date on which this section comes into operation.

22.—(1) If the Lord Chancellor, whether on a representation made to him by any person interested or not, certifies that the Accountant-General—

Liability of Consolidated Fund for funds in court and provision as to dormant funds.

- (a) has failed to pay any money received by him under the County Court Funds Rules, or to transfer or deliver any securities vested in him under those rules whether solely or jointly with any other person, being money or securities required by any order of a county court to be paid, transferred or delivered by him; or
- (b) has been guilty of any default with respect to any such money or securities;

the Treasury shall cause to be paid out of the Consolidated Fund or the growing produce thereof such sum as may be certified by the Lord Chancellor to be necessary for the purpose of paying the money so required to be paid, or of replacing the securities so required to be transferred or delivered, or of making good such default.

(2) If at any time the money in the hands of the Commissioners under the County Court Funds Rules is insufficient to pay any amount payable by them in pursuance of those rules, the Treasury shall either direct the Commissioners to realise a sufficient portion of the securities purchased by them under the rules and to apply the proceeds of such realisation in paying the amount so payable by them, or cause the required sum to be issued to the Commissioners out of the Consolidated Fund or the growing produce thereof.

(3) If in any year the aggregate sum received by the Commissioners by way of interest on the money invested by them under the County Court Funds Rules exceeds the aggregate amount of the interest due to be paid or credited in respect of that year on money placed to deposit

and investment accounts, the surplus, or such part thereof as the Treasury may direct, shall either be paid into the Exchequer or be applied as an appropriation in aid of the moneys provided by Parliament for the salaries and expenses connected with the county courts, and if in any year the said sum is less than the said amount, the deficiency shall, if not otherwise provided for, be made good out of the Consolidated Fund or the growing produce thereof.

(4) All moneys standing to the credit of accounts which are closed in pursuance of the County Court Funds Rules shall be paid to the Commissioners and applied by them in redemption of debt:

Provided that where, after any account has been closed as aforesaid, any person proves to the satisfaction of the court on behalf of which the account was kept that, if the account had not been closed, he would have been entitled to the money standing to the credit of the account or any part thereof, the court shall make an order for the payment to that person of the money to which he would have been entitled, together (if the court so directs) with all or any part of the interest on that money which would have been credited to the account if the account had not been closed, and the amount required to comply with the order of the court shall, if not otherwise provided for, be paid out of the Consolidated Fund or the growing produce thereof to the Accountant-General.

Accounts of
registrar
and duties
as to fees,
&c. collected
by him.

23.—(1) A registrar shall, in addition to the accounts required to be kept by him under the County Court Funds Rules, keep such accounts as the Lord Chancellor, after consultation with the Treasury, may direct, and all accounts kept by a registrar shall be audited at such times and in such manner as the Lord Chancellor, after consultation as aforesaid, may direct.

(2) All fees, fines, penalties and forfeitures paid to a registrar under the principal Act or any other Act shall be dealt with by him in such manner as the Lord Chancellor, after consultation with the Treasury, may direct.

(3) This section shall not apply to the registrar of the Mayor's and City of London Court.

Provisions as to Solicitors.

24. Such of the provisions of section one hundred and eighteen of the principal Act as relate to the taxation of costs and charges between solicitor and client shall cease to have effect, and the remuneration of a solicitor in respect of contentious business done by him in a county court shall be regulated in accordance with the provisions of sections fifty-nine to seventy of the Solicitors Act, 1932, and for that purpose those sections shall have effect subject to the following provisions :—

Remuneration of solicitors for contentious business done in county court.

22 & 23

Geo. 5. c. 37.

- (a) for the purpose of paragraph (i) of subsection (9) of section sixty a county court shall be deemed to be a court having jurisdiction to enforce and set aside agreements;
- (b) a county court shall have the same jurisdiction as the High Court to make orders for the delivery by a solicitor of a bill of costs and for the delivery up of, or otherwise in relation to, any deeds, documents or papers in his possession, custody or power, in cases where the bill of costs, deeds, documents or papers relate wholly or partly to contentious business done by the solicitor in that county court;
- (c) where a bill of costs relates wholly or partly to contentious business done in a county court and the amount of the bill does not exceed one hundred pounds, the powers and duties of the High Court relating thereto under sections sixty-five, sixty-six and sixty-seven may be exercised and performed by a county court in which any of the business was done;
- (d) the registrar of a county court shall be the taxing officer of that court but any taxation of costs by him may be reviewed by the judge on the application of any party thereto;
- (e) on the taxation of any costs or bill of costs, the amount which may be allowed in respect of any item relating to proceedings in a county court shall not exceed the amount which could have been allowed in respect of that item as between party and party in those proceedings,

having regard to the nature of the proceedings and the amount of the claim and counterclaim (if any) therein.

Miscellaneous provisions as to solicitors.

25.—(1) No roll of solicitors shall be kept in a county court and a person qualified to act as a solicitor may practice in a county court notwithstanding that no such roll is kept therein and notwithstanding anything in section forty-four of the Solicitors Act, 1932.

(2) Notwithstanding anything in section seventy-two of the principal Act, a county court may refuse to hear a person claiming to address the court as a solicitor unless that person has signed and delivered to the court a statement of his name and place of business and the name of the firm (if any) of which he is a member.

(3) A county court shall have the same power to enforce an undertaking given by a solicitor in relation to any proceedings in that court as the High Court has to enforce an undertaking so given in relation to any proceedings in the High Court.

Miscellaneous and General.

Payment of money payable under judgment or order of court.

26. Notwithstanding anything in section one hundred and five of the principal Act, where a judgment is given or an order is made by a county court under which a sum of money of any amount is payable, whether by way of satisfaction of the claim or counterclaim in the proceedings or by way of costs or otherwise, the court may, as it thinks fit, order the money to be paid either—

- (a) in one sum, whether forthwith or within such period as the court may fix; or
- (b) by such instalments payable at such times as the court may fix.

Amendment of s. 158 of principal Act.

27.—(1) In section one hundred and fifty-eight of the principal Act (which provides for the execution of orders of commitment out of the jurisdiction of the court) the expression “order of commitment” shall be construed as including any order or warrant for the committal of any person to prison, whether issued in pursuance of the principal Act or any other Act or of county court rules :

Provided that in the case of a warrant of attachment the said section shall have effect subject to the following modification, namely, that where the person, in respect of whom the warrant of attachment is issued, is apprehended in pursuance of the section, he shall be kept in the prison to which he is conveyed until further order of the court by which the warrant of attachment was ordered to be issued.

(2) Where a warrant of execution, or an order of commitment under the Debtors Act, 1869, is sent by the registrar of one county court to the registrar of another county court for execution under the provisions of the said section one hundred and fifty-eight, the judge of that other court shall have the same power of staying or suspending the execution as respects any goods and chattels within the jurisdiction of that other court or of ordering the discharge of the debtor, as the case may be, under section one hundred and fifty-three of the principal Act, as the judge of the first-mentioned court. 32 & 33 Vict.
c. 62.

28.—(1) The power, under section twenty-four of the Act of 1868 and section one hundred and eighty-three of the principal Act, of prescribing that certain judgments, decrees and orders are to be registered shall be exercised by the Lord Chancellor by regulations instead of being exercised by county court rules. Registra-
tion of
judgments
and orders.

(2) The power conferred upon the Lord Chancellor by the said section one hundred and eighty-three to make regulations as to the keeping of the register of judgments, decrees and orders shall include power to make provision by the regulations—

- (a) for exempting from registration any judgment or order which is proved, in such manner and within such time as may be prescribed by the regulations, to have been satisfied or complied with either wholly or to such an extent that the sum (if any) owing in respect thereof is less than ten pounds; and
- (b) for cancelling the registration of any judgment or order which is proved in manner aforesaid to have been wholly satisfied or complied with.

Minor
amend-
ments.

29. The amendments specified in the second column of the Fourth Schedule to this Act, being minor amendments of enactments relating to county courts which it is expedient to consolidate, shall be made in the provisions of those enactments specified in the first column of that Schedule.

Amendment
as to rules of
court.

30.—(1) The power to make rules under section one hundred and sixty-four of the principal Act shall, without prejudice to the generality of the provisions of that section, extend to—

- (a) prescribing the court in which proceedings are to be commenced and the procedure to be adopted where proceedings are commenced in one court which should under the rules have been commenced in another court;
- (b) prescribing the circumstances in which proceedings may be transferred from one court to another and the procedure consequent on any such transfer;
- (c) regulating or making provision for any matters which were regulated or provided for by the county court rules in force at the passing of this Act;
- (d) regulating or providing for any other matter which was regulated or provided for before the commencement of this Act by such of the provisions of the enactments set out in Part III of the Fifth Schedule to this Act as are mentioned in the third column of that Part of that Schedule.

(2) The rules made under paragraphs (a) and (b) of the last foregoing subsection may make different provision as respects different kinds of proceedings and may make special provision as respects proceedings in courts for districts in or adjacent to the County of London and as respects proceedings by or against judges and officers of the courts.

Penalty for
repre-
senting
document

31.—(1) It shall not be lawful to deliver or cause to be delivered to any person any document which, not having been issued under the authority of a county

court, has, by reason of its form or contents or both, the appearance of having been issued under such authority. to have been issued from county court.

(2) If any person contravenes the provisions of this section, he shall for each offence be liable on summary conviction to a fine not exceeding fifty pounds.

(3) Nothing in this section shall be taken to prejudice the provisions of section one hundred and eighty of the principal Act.

32.—(1) For the definition of the expressions “court” and “county court” in section one hundred and eighty-six of the principal Act, the following provision shall be substituted,— Amendment of s. 186 of principal Act.

“ ‘Court’ and ‘county court’ mean any court held for a district under this Act, and any jurisdiction and powers conferred on any such court by this or any other Act may be exercised by any judge of the court or by any deputy of any such judge or, to the extent authorised by this or any other Act or by county court rules, by any registrar of the court or any person authorised as aforesaid to perform the functions of the registrar of the court.”

(2) At the end of the said section one hundred and eighty-six the following definition shall be inserted,—

“ ‘Officer’ in relation to a court, means any registrar, deputy registrar, or assistant registrar of that court, and any clerk, bailiff, usher or messenger in the service of that court.”

(3) The words “or any future Act relating to county courts” in the said section one hundred and eighty-six shall cease to have effect.

33.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them,— Interpretation.

“The principal Act” means the County Courts Act, 1888; 51 & 52 Vict. c. 43.

“The Act of 1868” means the County Courts Admiralty Jurisdiction Act, 1868, and “the Act of 1869” means the County Courts Admiralty Jurisdiction Amendment Act, 1869; 31 & 32 Vict. c. 71. 32 & 33 Vict. c. 51.

“Admiralty county court” means a county court appointed to have admiralty jurisdiction under the Act of 1868;

“County court rules” means rules made under section one hundred and sixty-four of the principal Act;

“Hearing” includes trial, and the expression “heard” shall be construed accordingly;

“Proceedings” means actions and matters.

(2) In this Act, unless the context otherwise requires, a reference to any enactment shall be construed as a reference to that enactment as amended by any other enactment, including this Act.

Repeals.

34.—(1) The enactments set out in Part I of the Fifth Schedule to this Act, being enactments which to the extent specified in the third column of that Part of that Schedule should be repealed in view of the foregoing provisions of this Act, are hereby repealed to the extent so specified:

Provided that this subsection shall have effect subject to the foregoing provisions of this Act relating to section one hundred and seventy-three of the principal Act.

(2) The enactments set out in Part II of the said Fifth Schedule, being enactments which, to the extent specified in the third column of that Part of that Schedule, have by lapse of time or otherwise become obsolete or unnecessary and which should be repealed with a view to the consolidation of enactments relating to county courts, are hereby repealed to the extent so specified.

(3) The enactments set out in Part III of the said Fifth Schedule, being enactments which, to the extent specified in the third column of that Part of that Schedule, regulate or provide for matters which, by virtue of the provisions of this Act and otherwise, it is lawful and expedient for county court rules to regulate or provide for, are hereby repealed to the extent so specified.

Short title,
saving,
con-
struction,
extent and
commence-
ment.

35.—(1) This Act may be cited as the County Courts (Amendment) Act, 1934, and shall be construed as one with the County Courts Acts, 1888 to 1924, and this Act and those Acts may be cited together as the County Courts Acts, 1888 to 1934.

(2) Nothing in any provision of this Act shall restrict the jurisdiction of a county court to hear and determine any proceedings commenced in the court before that provision comes into operation.

(3) This Act shall not extend to Scotland or Northern Ireland.

(4) The provisions of this Act shall come into operation on such date as His Majesty in Council may appoint, and different days may be appointed for different purposes and different provisions of this Act.

SCHEDULES.

FIRST SCHEDULE.

PROVISIONS AS TO FORFEITURE FOR NON-PAYMENT OF RENT. Section 6.

1. Where a lessor is proceeding by action in a county court (being an action in which a county court has jurisdiction) to enforce against a lessee a right of re-entry or forfeiture in respect of any land for non-payment of rent, the following provisions shall have effect :—

- (a) If the lessee pays into court not less than five clear days before the return day all the rent in arrear and the costs of the action, the action shall cease, and the lessee shall hold the land according to the lease without any new lease;
- (b) If the action does not cease as aforesaid and the court at the trial is satisfied that the lessor is entitled to enforce the right of re-entry or forfeiture, the court shall order possession of the land to be given to the lessor at the expiration of such period, not being less than four weeks from the date of the order, as the court thinks fit, unless within that period the lessee pays into court all the rent in arrear and the costs of the action;

1ST SCH.
—cont.

- (c) If, within the period specified in the order, the lessee pays into court all the rent in arrear and the costs of the action, he shall hold the land according to the lease without any new lease, but if the lessee does not, within the said period, pay into court all the rent in arrear and the costs of the action, the order shall be enforced in the prescribed manner, and so long as the order remains unreversed, the lessee shall be barred from all relief :

Provided that, where the lessor is proceeding in the same action to enforce a right of re-entry or forfeiture on any other ground as well as for non-payment of rent, or to enforce any other claim as well as the right of re-entry or forfeiture and the claim for arrears of rent, sub-paragraph (a) of this paragraph shall not apply, and nothing in this paragraph shall be taken to affect the power of the court to make any order which it would otherwise have power to make as respects the right of re-entry or forfeiture on that other ground.

2. Where any such action as aforesaid is brought in a county court and, at the time of the commencement of the action, one-half year's rent is in arrear and the lessor has a right to re-enter for non-payment thereof and no sufficient distress is to be found on the premises countervailing the arrears then due, the service of the summons in the action in the prescribed manner shall stand in lieu of a demand and re-entry.

3. Where a lessor has enforced against a lessee, by re-entry without action, a right of re-entry or forfeiture as respects any land for non-payment of rent, the lessee may, if neither the annual value of the land nor the annual rent payable in respect thereof exceeds one hundred pounds, at any time within six months from the date on which the lessor re-entered apply to the county court for relief, and on any such application the court may, if it thinks fit, grant to the lessee such relief as the High Court could have granted.

4. Nothing in this Schedule shall be taken to affect the provisions of subsection (4) of section one hundred and forty-six of the Law of Property Act, 1925 (which empowers the Court to give certain relief to under-lessees).

5. Subsection (5) of the said section one hundred and forty-six (which defines the expressions "lessee" and "lessor" and certain other expressions) shall apply for the purpose of this Schedule as it applies for the purpose of that section.

SECOND SCHEDULE.

Section 7.

EXTENT OF JURISDICTION OF COURT UNDER CERTAIN
ENACTMENTS.

Enactment.

Limit of jurisdiction.

THE LAW OF PROPERTY ACT,
1922—

Subsection (1) of section one hundred and twenty-nine, paragraph (v) of subsection (1) of section one hundred and thirty-nine, and paragraphs (6) and (8) of the Twelfth Schedule. In a case where the land which is to be dealt with in the court does not exceed in capital value five hundred pounds or in annual rateable value thirty pounds.

Section one hundred and thirty-two. In a case where the lord is proceeding by action in the court to enforce the right of forfeiture.

THE TRUSTEE ACT, 1925—

Subsection (1) of section forty-one, sections forty-two, fifty-one, fifty-seven, sixty, sixty-one and sixty-two. In a case where the trust estate or fund to be dealt with in the court does not exceed in amount or value five hundred pounds.

Sections forty-four, forty-five, and forty-six. In a case where the land or the interest or contingent right in land which is to be dealt with in the court forms part of a trust estate which does not exceed in amount or value five hundred pounds.

Sections forty-seven and forty-eight. In a case where the judgment is given or order is made by the court.

Sections fifty and fifty-six. - In a case where a vesting order can be made by the court.

Section fifty-three. - - In a case where the amount or value of the property to be dealt with in the court does not exceed five hundred pounds.

Section fifty-nine. - - In the case of any proceedings before the court.

2ND SCH.
—cont.

Enactment.

Limit of jurisdiction.

THE TRUSTEE ACT, 1925—cont.

Section sixty three. - - In a case where the money or securities to be paid into court do not exceed in amount or value five hundred pounds.

THE LAW OF PROPERTY ACT,
1925—

Subsections (4) and (5) of section three, sections thirty, forty-nine, and sixty-six, proviso (iii) to paragraph 3 of Part III of the First Schedule, and proviso (v) to sub-paragraph (3) and provisos (iii) and (iv) to sub-paragraph (4) of paragraph 1 of Part IV of the First Schedule, In a case where the land which is to be dealt with in the court does not exceed in capital value five hundred pounds or in annual rateable value thirty pounds.

Subsection (1) of section eighty-nine, subsection (1) of section ninety, and sections ninety-one and ninety-two. In a case where the amount owing in respect of the mortgage or charge at the date of the commencement of the proceedings does not exceed five hundred pounds.

The proviso to subsection (1) of section one hundred and thirty-six. In a case where the amount or value of the debt or thing in action does not exceed one hundred pounds.

Section one hundred and forty-six. In a case where the lessor is proceeding by action in the court to enforce the right of entry or forfeiture, or, if the lessor is proceeding to enforce the said right otherwise than by action, in a case where neither the rent nor the value of the property comprised in the lease exceeds the sum of one hundred pounds by the year.

Section one hundred and forty-seven. In a case where neither the rent nor the value of the house or other building exceeds the sum of one hundred pounds by the year.

Enactment.	Limit of jurisdiction.	2ND SCH. —cont.
THE LAW OF PROPERTY ACT, 1925— <i>cont.</i>		
Sections one hundred and sixty-nine, one hundred and eighty-one and one hundred and eighty-eight.	In a case where the amount or value of the property or of the interest in the property which is to be dealt with in the court does not exceed five hundred pounds.	
THE LAND CHARGES ACT, 1925—		
Subsection (6) of section two.	In a case where the action was brought or the petition in bankruptcy was filed in the court.	
Subsection (5) of section six.	In a case where the order affecting land has been made by the court.	
Subsection (3) of section eight.	In a case where an application under section twenty-three of the Deeds of Arrangement Act, 1914, could be entertained by the court.	
Subsection (8) of section ten.	In a case where the land charge is within one of the following classes specified in the said section ten, viz., Class C (i), C (ii), or D (i), if the amount does not exceed five hundred pounds. In a case where the land charge is within Class C (iii), if the charge is for a specified capital sum of money not exceeding five hundred pounds, or, where the charge is not for a specified capital sum, if the land affected does not exceed in capital value five hundred pounds or in annual rateable value thirty pounds.	
Subsection (8) of section ten.	In a case where the land charge is within one of the following classes specified in the said section ten, viz., Class A, Class B, Class C (iv), Class D (ii), Class D (iii) or Class E, if the	

2ND SCH.
—cont.

Enactment.

Limit of Jurisdiction.

THE LAND CHARGES ACT, 1925—cont.

Subsection (8) of section ten—
cont.land affected does not exceed
in capital value five hundred
pounds or in annual rateable
value thirty pounds.

THE ADMINISTRATION OF ESTATES ACT, 1925—

Subsection (2) of section
thirty-eight, proviso (ii) to
subsection (1) of section
forty-one, and subsection
(2) of section forty-three.In a case where the estate in
respect of which the applica-
tion is made does not exceed
in amount or value five
hundred pounds.

Section seventeen.

- - -

In a case where the legal pro-
ceeding is pending in the
court.

Section 21.

THIRD SCHEDULE.

MATTERS AS RESPECTS WHICH PROVISION MAY BE MADE
BY COUNTY COURT FUNDS RULES.

1. The investment of money paid to the Commissioners under the rules and (subject to the provisions of this Act) the manner in which the interest received by the Commissioners on money so invested is to be dealt with.

2. The payment or crediting of interest on money placed to deposit accounts and investment accounts respectively.

3. The smallest amount which is to be placed to an investment account (unless ordered by the court to be invested notwithstanding the smallness of the amount); the smallest amount which is to be placed to, or remain in, a deposit account; the smallest amount of money placed to a deposit account on which interest is to be credited.

4. The time at which money in court is to be placed to a deposit account or investment account and on which interest on money placed to any such account is to begin and cease, and the mode of computing any such interest.

5. The circumstances in which interest on money placed to a deposit or investment account, or interest on any securities in court, is to be placed to a deposit account or an investment account.

6. The manner in which money is to be furnished to registrars by the Accountant-General, and to the Accountant-General by the Commissioners, for the purpose of enabling registrars and

the Accountant-General to comply with orders of court as to the payment of money out of court.

3RD SCH.
—cont.

7. The accounts to be kept by registrars for the purposes of the rules.

8. The vesting of money and securities in court in the holders of such offices as may be prescribed and their successors in office without any conveyance, assignment or transfer.

9. The discharge of the functions of the Accountant-General under the rules by deputy.

10. The manner in which money or securities in court before the rules come into operation are to be dealt with and the transition to the provisions of the rules from the provisions of the enactments mentioned in subsection (7) of the section of this Act which refers to this Schedule.

11. Such matters as are incidental to or consequential on the foregoing provisions of this Schedule or the provisions of subsection (1) of the section of this Act which refers to this Schedule or are necessary for giving effect to those provisions.

FOURTH SCHEDULE.

Section 29.

MINOR AMENDMENTS.

Enactment.	Amendment.
THE COUNTY COURTS ADMIRALTY JURISDICTION ACT, 1868.	
Section 22 - -	After the words "there shall" there shall be inserted the words "notwithstanding anything in section two hundred and two of the Supreme Court of Judicature (Consolidation) Act, 1925."
THE COUNTY COURTS (BUILDINGS) ACT, 1870.	
Section 4 - -	After the words "Commissioners of Works," there shall be inserted the words "on the representation of the Lord Chancellor made," and the words "and give such directions to" the Registrar of each court with regard to the hiring and dismissing of servants as shall seem fit shall cease to have effect.

4TH SCH.
—cont.

Enactment.

Amendment.

THE BANKRUPTCY ACT,
1883.

- Section 42 - - References to the commencement of the bankruptcy shall be construed as references to the date of the making of an order for the administration of the estate of a debtor under section one hundred and twenty-two of the Bankruptcy Act, 1883; references to the bankrupt shall be construed as references to the debtor; and references to the bankruptcy shall be construed as references to the order aforesaid.
- Section 122 - - There shall be inserted at the beginning of subs. (5) the words "Subject to the provisions of subsection (4) of this section and of section forty-two of this Act," and there shall be inserted after the words "county court," where those words first occur, the words "or which has been scheduled to the order."

THE COUNTY COURTS ACT,
1888.

- Section 1 - - The following subsection shall be inserted at the end of the section :—
“(2) This Act shall not extend to Scotland or Northern Ireland.”
- Section 10 - - For the words “his powers where the defendant does not appear or admits the debt” there shall be substituted the words “any powers which he is authorised to exercise by or under this Act or any other enactment.”
- Section 13 - - For the words “to remove any judge from all or any of the districts of which he is judge for the purpose of appointing him to any other district or districts” there shall be substituted the words “to direct that any judge shall cease to be the judge of any district or shall be transferred from all or any of the districts of which he is judge to any other district or districts.”

Enactment.	Amendment.	4TH SCH. —cont.
THE COUNTY COURTS ACT, 1888—cont.		
Section 23	- - For the words "the Treasury" where they first occur there shall be substituted the words "the Lord Chancellor," and for the words "the Treasury shall in each case with the concurrence of the Lord Chancellor" there shall be substituted the words "the Lord Chancellor shall in each case with the approval of the Treasury."	
Section 28	- - For the words from the beginning of the section to the words "seal of the court and" there shall be substituted the words "The registrar of every court shall keep or cause to be kept such records of and in relation to proceedings in the court as the Lord Chancellor may by regulations direct, and any entry in a book or other document required by the regulations to be kept for the purposes of this section, or a copy thereof."	
Section 31	- - References to the death or removal of a registrar shall be construed as including references to the vacation of office by a registrar from any cause whatsoever; and for the words "a rateable proportion of the salary attached to the office of registrar" there shall be substituted the words "such remuneration as the Lord Chancellor may, with the approval of the Treasury, direct."	
Section 32	- - References to the death or removal of a registrar shall be construed as including references to the vacation of office by a registrar from any cause whatsoever; after the words "duties of registrar" there shall be inserted the words "and may at his pleasure remove any person so appointed"; and for the words "a rateable proportion of the salary attached to the office of registrar"	

4TH SCH.
—cont.

Enactment.

Amendment.

THE COUNTY COURTS ACT,
1888—cont.

Section 32—cont.		there shall be substituted the words “ such remuneration as the Lord “ Chancellor may, with the approval “ of the Treasury, direct.”
Section 40	- -	For the words “ The treasurer, regis- “ trar and high bailiff of every “ court who may receive any moneys “ in the execution of his duty ” there shall be substituted the words “ Every “ registrar other than a whole-time “ registrar within the meaning of the “ County Courts Act, 1924, and “ every high bailiff.”
Section 41	- -	The words “ registrar, treasurer, high bailiff or other ” in both places where they occur shall cease to have effect, and for the words “ forfeit and pay the sum of fifty “ pounds to any person who shall “ sue for the same by action of “ debt ” there shall be substituted the words “ be liable on summary “ conviction to a fine not exceeding “ fifty pounds.”
Section 48	- -	The words “ or bailiff ” shall cease to have effect.
Section 50	- -	The words “ registrar, bailiff or ” shall cease to have effect in both places where they occur.
Section 51	- -	The words “ treasurer, registrar, bailiff or other ” shall cease to have effect, and for the words “ a treasurer, registrar or high bailiff ” there shall be substituted the words “ an officer appointed by the Lord Chancellor.”
Section 54	- -	For the words “ compliance therewith ” there shall be substituted the words “ failure to comply therewith.”
- Section 60	- -	For the word “ judge ” there shall be substituted the word “ court ”; after the word “ action ” there shall be inserted the words “ which would “ otherwise be within the jurisdiction “ of the court, and ” and the word “ reserved ” shall cease to have effect.

Enactment.	Amendment.	4TH SCH. —cont.
THE COUNTY COURTS ACT, 1888—cont.		
Section 62	- - For the words from “ all proceedings in the court ” to the end of the section there shall be substituted the words “ the action shall be transferred to the High Court.”	
Section 63	- - There shall be inserted at the end of the section the words “ or any other court in England.”	
Section 64	- - There shall be inserted after the word “ assigned ” the words “ for the time being ”; the words “ the judge of ” shall cease to have effect; and for the word “ judge ” where that word secondly occurs there shall be substituted the word “ court.”	
Section 72	- - For the word “ judge ” in the first and second places where it occurs there shall be substituted the word “ court.”	
Section 78	- - For the words from “ shall incur ” to the end of the section there shall be substituted the words “ shall be liable on conviction on indictment “ to imprisonment for any term not exceeding two years or on summary conviction to imprisonment for a term not exceeding six months or to a fine not exceeding fifty pounds, or to both such imprisonment and fine.”	
Section 83	- - The following section shall be substituted :— “ An affidavit to be used in a county court may be sworn before any justice of the peace, or before the judge or registrar of any court, or before an officer of any court being an officer appointed by the judge of that court for the purpose, as well as before any person authorised to take affidavits under the Commissioners for Oaths Acts, 1889 to 1891, and an affidavit	

4TH SCH.
—cont.

Enactment.

Amendment.

THE COUNTY COURTS ACT,
1888—cont.

Section 83—cont.

sworn before a judge or registrar
or before any such officer as
aforesaid may be sworn without
the payment of any fee.

Section 93 - - For the words "except as in this Act
provided" there shall be sub-
stituted the words "except as pro-
vided by this Act or county court
rules."

Section 94 - - For the word "judge" there shall be
substituted the word "court."

Section 100 - - After the word "actions" there shall
be inserted the words "or matters."

Section 104 - - After the word "action" in both
places where that word occurs there
shall be inserted the words "or
matter."

Section 111 - - For the words from the beginning of
the section to the word "allowances"
there shall be substituted the words
"Every person duly summoned as
a witness to whom at the same
time such sum in respect of his
expenses (including in such cases
as may be prescribed compensa-
tion for loss of time) as may be
prescribed for the purposes of this
section shall have been paid or
tendered."

Section 115 - - The section shall cease to have effect.

Section 121 - - For the words "at the expense of"
there shall be substituted the words
"on the application of and on
payment of the fee prescribed
under section one hundred and
sixty-five of this Act by" and
the words "or allow a copy to
be taken of the same by or on
behalf of such person or persons"
shall cease to have effect.

Enactment.	Amendment.	4TH SCH. —cont.
THE COUNTY COURTS ACT, 1888—cont.		
Section 126 -	- The words "under the provisions of this Act" shall cease to have effect.	
Section 137 -	- For the words "unless the replevisor shall discontinue or shall not prosecute such action or shall become nonsuit therein" there shall be substituted the words "unless the action is discontinued or dismissed for want of prosecution."	
Section 151 -	- For the words "exclusive of costs" there shall be substituted the words "whether by way of satisfaction of a claim or counterclaim or by way of costs or otherwise."	
Section 157 -	- For the words "in any court" there shall be substituted the words "in any county court or other court."	
Section 160 -	- After the words "rent thereof" there shall be inserted the words "in arrear at the date of such taking": for the word "poundage" there shall be substituted the word "fees."	
Section 161 -	- For the words from the beginning of the section to "any court" there shall be substituted the words "Whenever any order or warrant for the committal of any person to prison shall have been made by a county court, whether in pursuance of this or any other Act or of county court rules, the order or warrant shall be directed to the high bailiff of the court."	
Section 162 -	- The words from "and in default of payment" to the end of the section shall cease to have effect.	
Section 163 -	- For the words "either for contempt or in pursuance of the Debtors Act, 1869" there shall be substituted the words "in pursuance of this or any other Act or of county court rules."	

4TH SCH.
—*cont.*

Enactment.
—

Amendment.
—

THE COUNTY COURTS ACT,
1888—*cont.*

Section 166 - - The following section shall be substituted—

“(1) In default of the payment of any fees as provided by the fees orders for the time being in force, payment thereof shall be enforced by order of the court in like manner as payment of any debt adjudged by the court to be paid.

(2) A copy of the fees orders for the time being in force shall be posted in some conspicuous place in every courthouse and registrar’s office.

(3) In this section the expression ‘fees orders’ means orders made under the last foregoing section of this Act.”

Section 175 - - The words “or other person” shall cease to have effect.

THE MERCHANT SHIPPING
ACT, 1894.

Section 555 - - After the word “agreement” there shall be inserted the words “or by a county court in England.”

THE COUNTY COURT
JUDGES (RETIREMENT,
PENSIONS AND DEPUTIES
ACT), 1919.

Section 4 - - In subsection (1) for the words “the Treasury may on the recommendation of the Lord Chancellor” there shall be substituted the words “the Lord Chancellor may with the approval of the Treasury.”

THE COUNTY COURTS ACT,
1919.

Section 4 - - In subsection (1) the words “under any of the provisions of the principal Act or this Act” shall cease to have effect.

Enactment.

Amendment.

4TH SCH.
—cont.THE COUNTY COURTS ACT,
1924.

Section 3 - - For the purpose of subsection (4) assistant registrars shall be deemed not to be included in the expression "officers."

THE SUPREME COURT OF
JUDICATURE (CONSOLI-
DATION) ACT, 1925.

Section 33 - - In paragraph (a) of subsection (1) for the words "otherwise than sum-
"marily in manner provided by
"section five hundred and forty-
"seven of the Merchant Shipping
"Act, 1894" there shall be sub-
stituted the words "otherwise than
in a county court."

FIFTH SCHEDULE.

Sections 30
and 34.

ENACTMENTS REPEALED.

PART I.

REPEALS CONSEQUENTIAL ON PROVISIONS OF ACT.

Session and Chapter.	Short Title.	Extent of Repeal.
31 & 32 Vict. c. 71.	The County Courts Admiralty Jurisdiction Act, 1868.	Sections three, four, seven, ten, eleven, fourteen, fifteen, sixteen, twenty - six, twenty - seven, twenty - eight, thirty and thirty-one.
32 & 33 Vict. c. 51.	The County Courts Admiralty Jurisdiction Amendment Act, 1869.	Sections two, three, four and five.

5TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
33 & 34 Vict. c. 15.	The County Court (Buildings) Act, 1870.	In section four the words “ and “ give such direction to the “ registrar of each court with “ regard to the hiring and dis- “ missing of servants as shall “ seem fit.”
51 & 52 Vict. c. 43.	The County Courts Act, 1888.	In section four the words from “ Any such order ” to the end of the section; section five; in section eight the words from “ Provided that ” to “ the said duchy ”; in section fifteen the words “ or the chancellor of the duchy of Lancaster (as the case may be) ” and the words “ by them respectively ”; in section eighteen the words “ or the chancellor of the duchy (as the case may be) ” and the words “ or chancellor of the duchy (as the case may be) ”; in section twenty-one the words “ or the chancellor of the duchy “ of Lancaster (as the case may “ be) ”; in section twenty-seven the words “ or the chan- “ cellor of the duchy of Lan- “ caster (as the case may be) ” and the words “ or chancellor of the duchy ”; in section forty-one, the words “ regis- “ trar, treasurer, high bailiff “ or other ” in both places where they occur; in section forty-eight, the words “ or bailiff ”; in section fifty, the words “ registrar, bailiff or ” in both places where they occur; in section fifty-one, the words “ treasurer, registrar, bailiff or other ”; in section fifty-nine the words from “ and there- upon ” to the end of the section; in section sixty the word “ reserved ”; section sixty-one; in section sixty-four the words “ the judge of ”;

Session and Chapter.	Short Title.	Extent of Repeal.
51 & 52 Vict. c. 43— <i>cont.</i>	The County Courts Act, 1888— <i>cont.</i>	paragraph 5 of section sixty-seven; sections sixty-eight, sixty-nine, seventy and seventy-one; in section one hundred and two the words from the beginning of the section to “before the delivery of such summons”; in section one hundred and eleven the words from “and the remainder thereof” to the end of the section; sections one hundred and fourteen and one hundred and fifteen; in section one hundred and eighteen the words from “All costs and charges between solicitor and client” to the end of the section; in section one hundred and twenty the words “nor in any action for the recovery of tenements where the yearly rent or value of the premises does not exceed twenty pounds”; in section one hundred and twenty-one the words “or allow a copy to be taken of the same by or on behalf of such person or persons”; in section one hundred and twenty-six, the words “under the provisions of this Act”; sections one hundred and thirty-eight to one hundred and forty-five; in section one hundred and sixty-two the words from “and in default of payment” to the end of the section; in section one hundred and sixty-eight the words “and accounted for by him to the treasurer”; sections one hundred and sixty-nine, one hundred and seventy-one and one hundred and seventy-three; in section one hundred and seventy-five the words “or other person”; in section one hundred and eighty-six, the words “or any future Act relating to county courts.”

5TH SCH.
—*cont.*

5TH SCH.
—*cont.*

Session and Chapter.	Short Title.	Extent of Repeal.
57 & 58 Vict. c. 60.	The Merchant Shipping Act, 1894.	Sections five hundred and forty-seven to five hundred and forty-nine in so far as they relate to the summary determination in a county court of disputes as to salvage.
63 & 64 Vict. c. 47.	The County Courts (Investment) Act, 1900.	The whole Act.
1 & 2 Geo. 5. c. 57.	The Maritime Conventions Act, 1911.	Section five in so far as it relates to county courts.
9 & 10 Geo. 5. c. 73.	The County Courts Act, 1919.	In subsection (1) of section four the words "under any of the provisions of the principal Act or this Act"; subsection (2) of section eighteen; subsection (3) of section twenty-two.
14 & 15 Geo. 5. c. 17.	The County Courts Act, 1924.	In subsection (1) of section seven the words from "and as if" to the end of the subsection.
15 & 16 Geo. 5. c. 28.	The Administration of Justice Act, 1925.	Subsection (1) of section nineteen in so far as it relates to county courts, and in subsection (2) of that section the words from "and the expression" to the end of the subsection.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act, 1925.	In sub-paragraph (v) of paragraph (a) of subsection (1) of section twenty-two the words from the beginning of the paragraph to "salvage disputes"; section two hundred and three in so far as it relates to proceedings before county courts; subsections (3), (5) and (6) of section two hundred and five.
15 & 16 Geo. 5. c. 84.	The Workmen's Compensation Act, 1925.	Paragraphs 4, 5, 6 and 7 of the Second Schedule.
22 & 23 Geo. 5. c. 37.	The Solicitors Act, 1932.	Paragraph (iv) of section seventy.

PART II.

OBSOLETE OR UNNECESSARY ENACTMENTS.

5TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
20 & 21 Vict. c. 77.	The Court of Probate Act, 1857.	In section fifty-six the words "subject to the rules and orders under this Act"; in section fifty-seven the words from "and no such grant" to "three hundred pounds"; section fifty-eight.
31 & 32 Vict. c. 71.	The County Courts Admiralty Jurisdiction Act, 1868.	Sections five, twelve, thirteen, eighteen and nineteen; in section twenty-three the words from the beginning to "Provided that"; sections thirty-three, thirty-five and thirty-six.
36 & 37 Vict. c. 52.	The Intestates Act, 1873.	The whole Act.
38 & 39 Vict. c. 27.	The Intestates Act, 1875.	The whole Act.
51 & 52 Vict. c. 43.	The County Courts Act, 1888.	Section six; the proviso to section eleven; in section fourteen the words "or as a special pleader or equity draftsman"; section twenty-six; in section twenty-seven the words from "and from time to time" to the end of the section; in section thirty-three the words "or the chancellor of the duchy of Lancaster (as the case may be)"; in section thirty-four the words from "and they shall be paid" to the end of the section; in section thirty-five the words from the beginning of the section to "of the judge: and"; section thirty-nine; in section fifty-four the words "and the seal of the court" and the words "or sealed"; in section fifty-five the words "under the seal"; section fifty-eight; in section sixty-seven the words from "and the treasurer" to the end of the section; in section seventy-two the words "on either side but

5TH SCH.
—*cont.*

Session and Chapter.	Short Title.	Extent of Repeal.
51 & 52 Vict. c. 43— <i>cont.</i>	The County Courts Act, 1888— <i>cont.</i>	“ without any right of exclusive “ audience ” and the words from “ subject to such regulations ” to “ business of the court ”; in section one hundred and twelve the words “ and the seal of the court ”; section one hundred and twenty-seven; in section one hundred and thirty-one the words from “ and in any event ” to the end of the section; in section one hundred and forty-six the words “ under the seal of the court ”; in section one hundred and fifty-eight the words “ under the seal of the court ” and “ seal or stamp the same with the seal of his court and ”; in section one hundred and fifty-nine the words “ and shall be entitled to the poundage ” and the words “ and are entitled to ”; in section one hundred and sixty-two the words “ and sealed with the seal of the court ”; sections one hundred and seventy-four, one hundred and seventy-seven and one hundred and seventy-eight; in section one hundred and eighty-one the words “ by the Treasury ”; in section one hundred and eighty-five the words from the beginning of the section to “ Provided that.”
53 & 54 Vict. c. 7.	The Commissioners for Oaths Amendment Act, 1890.	The whole Act.
3 Edw. 7. —c. 42.	The County Courts Act, 1903.	Section five.
15 & 16 Geo.5. c. 49.	The Supreme Court of Judicature(Consolidation) Act, 1925.	In paragraph (a) of section one hundred and fifty the words from “ and the Judge thereof ” to the end of the paragraph.

PART III.

5TH SCH.
—cont.ENACTMENTS REGULATING OR PROVIDING FOR MATTERS WHICH
CAN BE REGULATED OR PROVIDED FOR BY RULES OF COURT.

Session and Chapter.	Short Title.	Extent of Repeal.
31 & 32 Vict. c. 71.	The County Courts Admiralty Jurisdiction Act, 1868.	In section eight the words "in some other county court or" and "to such other county court or" and "as the case may be."
51 & 52 Vict. c. 43.	The County Courts Act, 1888.	Section twenty-two; in section thirty-three the words from "Every bailiff duly appointed" to the end of the section; sections forty-two and forty-three; in section fifty-six the words from "and all such actions" to "provisions of this Act"; in section fifty-nine the words "of the district in which the lands, tenements or hereditaments are situate"; sections seventy-three, seventy-four, seventy-five, seventy-six, seventy-seven, seventy-nine, eighty, eighty-two, eighty-four, eighty-five, eighty-seven, eighty-eight, eighty-nine, ninety, ninety-one; in section ninety-two the words from the beginning of the section to "judgment of the court"; in section ninety-three the words from "but the court" to the end of the section; section one hundred and one; in section one hundred and six the words from "may in any case" to "and also" and from "or the hearing" to the end of the section; sections one hundred and seven, one hundred and eight, one hundred and nine, one hundred and ten, one hundred and thirteen; in section one hundred and eighteen the words from the beginning to "then in force" where those

5TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
51 & 52 Vict. c. 43— <i>cont.</i>	The County Courts Act, 1888— <i>cont.</i>	words first occur; section one hundred and nineteen; in section one hundred and twenty-nine the words from “but if a copy” to the end of the section; sections one hundred and thirty and one hundred and thirty-three.
9 & 10 Geo. 5. c. 73.	The County Courts Act, 1919.	Subsections (2), (3) and (4) of section five; sections seven, eight, ten and thirteen; subsection (2) of section twenty-four.
14 & 15 Geo. 5. c. 17.	The County Courts Act, 1924.	Section eight.
15 & 16 Geo. 5. c. 18.	The Settled Land Act, 1925.	In subsection (3) of section one hundred and thirteen the words from “within the district” to the end of the subsection.

CHAPTER 18.

An Act to amend the law with regard to the enforcement of enactments prohibiting the use in Scotland of the methods of fishing known as beam and otter trawling, and to the penalties that may be imposed in Scotland for other offences in connection with sea fisheries; and for purposes connected therewith. [17th May 1934.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Penalties
for illegal
trawling.

1.—(1) Any person who is guilty of illegal trawling shall be liable, on summary conviction,

(a) to a fine not exceeding one hundred pounds or to imprisonment for a period not exceeding three months; and